

Unit: 4

A. Press and Registration Books Act:

Introduction:

The **Press and Registration of Books Act (PRB Act), 1867** is one of the **oldest media laws in India**. It was introduced during the **British period** and is still active today. The main aim of this law is to **regulate printing presses and newspapers** and to **ensure proper registration of books and printed materials**.

Historical Background:

- The Act was passed by the **British colonial government** in **1867** to keep track of all printed materials in India.
 - It was mainly created to **control the Indian press** after the **revolt of 1857** when the British feared the growing power of the press.
 - Over time, the Act has been used for **record-keeping** and **monitoring** the printing and publication sector.
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Main Objectives of the Act:

1. To ensure that every **printing press and publisher is registered**.
 2. To keep **official records** of all newspapers, books, and other publications.
 3. To make sure the **publisher's and printer's names and addresses** are clearly mentioned.
 4. To **prevent illegal printing** or publication of false or seditious material.
 5. To help the government keep a **list of all newspapers** published in India.
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Key Provisions of the PRB Act:

1. **Declaration by Publisher and Printer:**
 - The printer and publisher must submit a signed **declaration** before a **District Magistrate** or **local authority**.
 - The declaration must include the name of the newspaper, language, place of printing, and publisher's address.
 2. **Authentication:**
 - The Magistrate authenticates the declaration, and a copy is sent to the **Press Registrar**.
 3. **Mandatory Disclosure:**
 - Every newspaper must print the **name of the owner, printer, and publisher** on each issue (usually on the first or last page).
 4. **Delivery of Copies:**
 - Every book or newspaper printed must send a copy to the **Registrar of Newspapers for India (RNI)** and to the **State or National Library**.
 5. **Registrar of Newspapers for India (RNI):**
 - This office maintains a complete **record of all registered publications** in India.
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Importance of the PRB Act:

- Helps the government monitor **growth and trends** in the newspaper industry.
- Ensures **accountability** of publishers and printers.

- Acts as a tool to **prevent misuse** of the press.
 - Helps in maintaining a proper **database** for reference, research, and legal matters.
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Limitations and Criticisms:

- The Act is **very old** (from 1867) and **needs to be updated** according to modern technologies and media practices.
 - It focuses mainly on **print media** and does not apply to **digital or online platforms**.
 - Critics say that it gives **bureaucratic control** and may cause delays in registration or unnecessary government interference.
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Recent Developments:

- In **2023**, the Indian government introduced the **Press and Registration of Periodicals Bill** to **replace** the old 1867 Act.
 - The new bill aims to **simplify registration**, use **digital processes**, and make the law more **media-friendly**.
 - It removes the need to go to the Magistrate and allows online applications for newspaper registration.
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Conclusion:

The **Press and Registration of Books Act, 1867** has played a major role in **regulating and documenting the print media** in India. Even though it was passed during the British era, it still forms the **legal base for press registration**. However, with changing times and technology, there is a need to **modernize this law** to match today's media environment.

B. Cable Television Act:

Introduction:

The **Cable Television Networks (Regulation) Act, 1995** was passed by the Government of India to **regulate cable TV services** in the country. The aim was to **control the content, register cable operators, and ensure responsible broadcasting**. This Act came into force because of the **sudden rise of private and foreign TV channels** in the 1990s after liberalization.

Background:

- In the early 1990s, after India's **economic liberalization**, many foreign and private TV channels started coming through cable networks.
 - There was **no law to control** these channels, so some programs had **obscene, violent, or politically sensitive content**.
 - The government realized the need to **regulate cable TV content** to protect social and cultural values.
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Objectives of the Act:

1. To **regulate cable TV operators** and their services.
2. To make sure that TV content follows the **Programme Code** and **Advertisement Code**.
3. To **ban illegal or unauthorized channels**.

4. To protect **national interest, morality, and public order**.
 5. To establish a system for **registration** of cable operators.
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Main Provisions of the Act:

1. **Registration of Cable Operators:**
 - Every cable TV operator must **register** with the **Post and Telegraph Department**.
 - Operating without registration is **illegal**.
 2. **Programme Code:**
 - TV programs must not:
 - Offend morality or decency
 - Attack religious or community sentiments
 - Show violence, obscenity, or vulgarity
 - Harm the integrity or security of the country
 3. **Advertisement Code:**
 - Ads must be truthful, decent, and follow the rules of the **Advertising Standards Council of India (ASCI)**.
 - No ads promoting **tobacco, alcohol**, or misleading products.
 4. **Right to Interfere in Public Interest:**
 - The government can **ban any channel or program** if it is harmful to public interest.
 5. **Mandatory Transmission of Doordarshan Channels:**
 - All cable networks must **show Doordarshan channels** like DD National and DD News compulsorily.
 6. **Penalty for Violation:**
 - Cable operators violating the law may face **finances, seizure of equipment, or cancellation of registration**.
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Amendments and Updates:

- The Act has been **amended several times** to include new rules for:
 - **Set-top boxes**
 - **Digital cable systems**
 - **Broadcasting standards**
 - In 2021, the Ministry of Information and Broadcasting introduced a **self-regulation mechanism** for OTT platforms and digital media under new **IT Rules**, which are connected with the spirit of this Act.
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Role in Indian Media:

- This Act helped in **regularizing the cable TV sector**.
 - It **prevented harmful or fake content** from reaching the public.
 - It created a **legal framework** for cable operations and TV broadcasting.
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Criticism:

- The Act sometimes gives the government **too much power**, leading to censorship.
 - Some critics say that it does not fully cover **digital and OTT platforms**.
 - There have been **demands for a new, modern broadcasting law**.
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Conclusion:

The **Cable Television Networks (Regulation) Act, 1995** was a necessary step to **organize and control cable TV services** in India. It ensures that television content remains **decent, legal, and culturally appropriate**. In today's changing media world, however, there is a need to **expand or update this law** to include **digital media and streaming platforms**.

C. Cinematography Act and Censor Board:

Introduction:

The **Cinematography Act, 1952** is a law passed by the **Government of India** to **regulate the certification and screening of films** in India. Under this Act, the government formed the **Central Board of Film Certification (CBFC)**, commonly known as the **Censor Board**, to check and certify films before they are released for the public.

Background:

- Before independence, British rulers used censorship to suppress Indian nationalist ideas in films.
- After independence, India needed a proper law to **protect public morals, national interest, and cultural values** through films.
- The **Cinematograph Act was passed in 1952**, and the CBFC was formed under this Act.

Objectives of the Act:

1. To provide a legal system to **certify films for public exhibition**.
2. To **control objectionable or harmful content** in films.
3. To **ensure films respect the law, culture, and values** of the country.
4. To create a system of **classification of films** based on age and suitability.

Main Provisions of the Cinematography Act, 1952:

1. **Central Board of Film Certification (CBFC):**
 - Head office in Mumbai.
 - Works under the **Ministry of Information and Broadcasting**.
 - Reviews every film before public release.
2. **Categories of Film Certification:**
 - **U (Universal)** – Suitable for all age groups.
 - **U/A** – Children under 12 need parental guidance.
 - **A (Adult)** – Only for people aged 18 and above.
 - **S (Special)** – Only for specific groups like doctors, scientists, etc.
3. **Grounds for Refusing Certification:**
 - Films that may harm **national security**.
 - Content that promotes **violence, hate, or communal disharmony**.
 - Scenes with **nudity, obscenity, or vulgarity**.

- Films that offend **morality or decency**.
 - 4. **Power of the Government:**
 - The central government can **overrule the CBFC** decisions.
 - It can **ban a film** if it is harmful to national interest or law and order.
 - 5. **Censorship and Appeals:**
 - If a producer disagrees with CBFC, they can appeal to the **Film Certification Appellate Tribunal (FCAT)**.
 - FCAT was **abolished in 2021**, and now appeals go to **High Courts**.
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Role of CBFC (Censor Board):

- CBFC is not just a censor board, it is a **certification body**.
 - It tries to **balance creativity and social responsibility**.
 - It often asks filmmakers to **cut or modify scenes** before giving certification.
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Recent Developments:

- In **2021**, the Indian government introduced **Cinematograph (Amendment) Bill** to:
 - Introduce **digital certification**.
 - Allow government to **re-examine CBFC-certified films** in rare cases.
 - Introduce **strict action against film piracy**.
 - There has been a demand to make the **certification process more transparent and liberal**.
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Controversies and Criticisms:

- The CBFC is often **accused of being too strict or politically influenced**.
 - Some believe it violates **freedom of expression** under Article 19 of the Constitution.
 - Filmmakers have complained about **unfair cuts**, delays, and lack of creativity freedom.
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Famous Case Study:

Film: “Udta Punjab” (2016)

- The CBFC asked for **89 cuts**, saying the film showed drug abuse and defamed Punjab.
 - The producers went to **Bombay High Court**.
 - The court said **creative freedom is important**, and allowed the film with only **1 cut**.
 - This case raised questions about **censorship vs freedom**.
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Conclusion:

The **Cinematography Act, 1952** and the **Censor Board (CBFC)** play a major role in ensuring that films follow **legal and moral boundaries**. While the law helps in **protecting public interest**, it must also **respect the freedom of expression**. There is a need to update and reform the Act to match the **changing times and digital platforms**.

D. Whistle blower Protection Act:

Introduction:

The **Whistle Blowers Protection Act, 2014** is a law made by the Government of India to **protect people who report corruption, misuse of power, or illegal activities** in the government or public offices. These people are called **whistleblowers**.

A **whistleblower** is someone who informs the authority about **wrongdoing** happening inside an organisation, especially **government departments**, public sector offices, or government-linked agencies.

Background:

- The demand for a whistleblower law increased after **Satyendra Dubey**, an engineer with the **National Highways Authority of India (NHAI)**, was **murdered in 2003** after exposing corruption in the Golden Quadrilateral highway project.
 - After his death, there was a huge demand from the public and media for a law to **protect whistleblowers**.
 - The **Whistle Blowers Protection Bill** was introduced in Parliament in 2011 and became an Act in **2014**.
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Objectives of the Act:

1. To provide a **legal system to report corruption or misuse of power** in public offices.
 2. To protect the **identity and safety** of whistleblowers.
 3. To allow people to complain against **abuse of authority, criminal offences, or violations of rules** in government.
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Key Features of the Act:

1. **Who can file a complaint?**
 - Any person, including a public servant, can make a complaint.
 - Complaints can be made in **writing** or **email** to a **competent authority**.
 2. **Competent Authority:**
 - It is the person or body responsible to receive and investigate the complaint.
 - Example: **Central Vigilance Commission (CVC)** for central government departments.
 3. **Protection to Whistleblowers:**
 - The Act ensures that the identity of the whistleblower will be **kept secret**.
 - It protects the whistleblower from **victimisation, transfer, harassment, or threats**.
 - If someone harms the whistleblower, strict **legal action** can be taken.
 4. **Punishment for False Complaints:**
 - If a person makes a **false or misleading complaint**, they may face **punishment or fine**.
 5. **Time Limit:**
 - A complaint must be made within **7 years** of the occurrence of the incident.
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Limitations and Criticisms of the Act:

1. **2015 Amendment Bill** (Not passed till now):
 - Proposed to **exclude classified documents** (under Official Secrets Act).
 - Many experts believe this would **weaken the law** and stop whistleblowers from revealing serious wrongdoings.

2. **Private Sector not included:**

- The Act applies only to **government departments**, not to **private companies**.

3. **No strong witness protection system:**

- Whistleblowers still face **threats to life** or job loss.
- In many cases, whistleblowers are **harassed or attacked**.

Important Case Study:

Satyendra Dubey Case (2003):

- He was an engineer in NHAI.
- He wrote a letter to the Prime Minister reporting corruption in the Golden Quadrilateral project.
- His name was leaked, and he was **murdered** in Gaya, Bihar.
- This case led to public demand for a strong **whistleblower protection law**.

Conclusion:

The **Whistle Blowers Protection Act, 2014** is an important law to **fight corruption and protect truth-tellers** in the system. It gives people the courage to speak out against injustice and wrongdoing. However, the law needs **stronger protections, cover for private sector**, and proper **implementation** to ensure that no whistleblower is harmed for doing the right thing.

E. Information Technology Act and other Cyber security laws:

Introduction:

The **Information Technology Act, 2000 (IT Act)** is the main law in India that deals with **cyber crimes, electronic communication, online fraud**, and the **legal status of digital records**. It was passed to **give legal recognition to electronic documents and digital signatures**, and to **control cybercrime and data misuse** in India.

With the growth of the internet, social media, and digital banking, cyber security laws have become very important to **protect people and organisations from online threats**.

Objectives of the Information Technology Act, 2000:

1. To give **legal recognition** to electronic records and digital signatures.
2. To make laws for **online transactions, e-commerce, and electronic governance**.
3. To punish crimes like **hacking, identity theft, data theft, cyber terrorism**, etc.
4. To protect citizens from **online fraud, cyberstalking, and cyberbullying**.
5. To help **law enforcement agencies** investigate and act against cybercriminals.

Important Features of the IT Act:

1. Legal Recognition of Digital Documents:

- Electronic records and digital signatures are legally valid just like paper documents.

2. Cyber Offences Covered:

- **Hacking** – illegal access to computers.
- **Data Theft** – stealing personal or official data.
- **Phishing** – tricking users to give passwords or bank details.
- **Cyberstalking and Online Harassment.**
- **Sending offensive messages** through communication services.
- **Cyber Terrorism** – using internet to spread fear or attack systems.

3. Digital Signature and Electronic Contracts:

- Provides a system to use digital signatures for **secure online communication** and **contracts**.

4. Cyber Appellate Tribunal:

- A special body created to **resolve disputes related to cyber laws**.

5. Service Providers' Role:

- Internet providers, websites, or telecom companies must **cooperate with law enforcement** when needed.

6. Amendment in 2008:

- New offences like **cyber terrorism, voyeurism, child pornography**, etc. were added.

Important Sections of the IT Act:

- **Section 66** – Hacking (punishment up to 3 years jail and/or fine).
- **Section 66C** – Identity theft.
- **Section 66D** – Cheating by impersonation through computers.
- **Section 67** – Publishing or transmitting obscene material.
- **Section 69** – Power of government to monitor and intercept data.
- **Section 72** – Breach of confidentiality and privacy.

Other Cyber Security Laws and Initiatives in India:

1. Indian Penal Code (IPC):

- Sections like **419, 420**, and **463–465** also apply to online frauds and identity theft.

2. Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021:

- These rules guide social media platforms and OTT content.
- Platforms must remove objectionable content and obey Indian laws.

3. National Cyber Security Policy, 2013:

- Aims to **secure cyberspace**, protect critical information infrastructure, and **train cyber security experts**.

4. CERT-In (Indian Computer Emergency Response Team):

- Government agency that handles **cyber threats and incidents**.
- It monitors hacking attempts, virus attacks, data breaches, etc.

5. Data Protection Bill (Pending):

- India is working on a law to **protect personal data** of citizens from misuse by companies and the government.

Recent Cybercrime Cases in India:

• Aadhaar Data Leak (2018):

- Personal data of Aadhaar holders was leaked through online platforms, raising privacy concerns.

- **Bangalore Bitcoin Scam (2021):**
 - Hackers used government systems to run an illegal Bitcoin operation.
 - **Bullibai & Sulli Deals Case (2021-22):**
 - Women from minority communities were targeted with fake auction apps – arrested people were charged under IT Act and IPC.
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Conclusion:

The **Information Technology Act** is the foundation of India's **cyber law structure**. As digital usage increases, so do **cyber threats**. It is important for citizens, media professionals, and organisations to **follow cyber laws**, respect **digital privacy**, and report **online crimes**. Strong laws, proper enforcement, and public awareness are necessary to ensure a **safe digital India**.

ASGAR ALI

Unit: 5

A. Media Ethics – Ethical aspects of reporting including privacy, Plagiarism and protecting sources:

Introduction:

Media ethics means following moral principles and professional standards in journalism and mass communication. Journalists have a duty to report the truth while also being fair, accurate, responsible, and respectful of human dignity.

Ethical reporting is important to maintain **public trust**, **credibility of the media**, and **freedom of the press**. Journalists face many ethical challenges, especially regarding **privacy**, **plagiarism**, and **protecting confidential sources**.

1. Privacy:

Definition:

Privacy means a person's right to control their own personal information and to live without unwanted public attention.

Ethical Issue in Journalism:

- Media must balance **public interest** with an individual's **right to privacy**.
- Sometimes media shows the private life of a person which may cause **mental or social harm**.

When privacy can be breached:

- Only if the **public interest is strong**, such as:
 - To expose corruption or crime.
 - When a public figure misuses power.
 - In emergencies (natural disaster, crime, etc.).

Unethical Examples:

- Publishing private photos without consent.
- Reporting on personal life of victims (rape, suicide) without sensitivity.

Ethical Guidelines:

- Always **take consent** if reporting private matters.
 - Be **sensitive** to victims and minors.
 - Do not sensationalise personal tragedies.
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2. Plagiarism:

Definition:

Plagiarism is using someone else's **words, photos, videos, or ideas** without giving credit, and pretending it is your own work.

Why it is unethical:

- It is **dishonest** and **harms the reputation** of the media.
- It is a form of **intellectual theft**.

- It **misleads the audience**.

Examples:

- Copying news articles or quotes without mention of the original source.
- Using photos from the internet without permission.

How to avoid plagiarism:

- Always **mention the source** clearly.
 - Use **quotation marks** for direct quotes.
 - Use **original writing** and give proper **citations**.
 - Use plagiarism-checking tools before publishing.
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3. Protecting Sources:

Definition:

In journalism, a **source** is a person who gives confidential or inside information to a journalist. Protecting a source means not revealing their identity without permission.

Why protection is important:

- To **ensure safety** of the source.
- To encourage more **whistleblowers** or truth-tellers to come forward.
- It protects **freedom of the press**.

Indian Context:

- There is **no specific law** in India that gives a legal right to journalists to protect their sources.
- However, courts have sometimes accepted **journalists' refusal** to name their source as part of **freedom of expression** (Article 19(1)(a)).

Famous Example:

- **Watergate Scandal** in the USA: Journalists Bob Woodward and Carl Bernstein protected their source "Deep Throat" who exposed US President Nixon's corruption.

Ethical Guidelines:

- Never reveal a source without their permission.
 - Use **coded names** or **blur identity** if needed.
 - Make sure the source is **credible and trustworthy**.
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Conclusion:

Media ethics is not just about following rules but about maintaining **honesty, responsibility, and sensitivity** in every story. Respecting **privacy**, avoiding **plagiarism**, and **protecting sources** are three of the most important ethical principles. A good journalist always balances **truth with responsibility** and puts the **public interest above everything else**.

B. Media watchdog and Press ombudsman:

Introduction:

A **free press** is important in any democracy. But the press must act responsibly. So, there must be some **mechanism to check** whether media is working ethically and fairly. This is where **media watchdogs** and **press ombudsmen** come in.

They help ensure that journalism remains **truthful, unbiased, and respectful** of people's rights.

1. Media Watchdog:

Definition:

A media watchdog is an **organization or authority** that keeps an eye on media content and activities to ensure they follow **ethical and legal standards**.

Functions of a Media Watchdog:

- Checks whether media is spreading **fake news or hate speech**.
- Encourages **fair, balanced, and truthful reporting**.
- Receives **public complaints** against media.
- Advises or **warns media houses** about violations.
- Publishes reports and **guidelines** for better journalism.

Examples of Media Watchdogs:

- **Press Council of India (PCI)** – It is the official media watchdog in India. It was set up in 1966.
- **News Broadcasting & Digital Standards Authority (NBDSA)** – It watches over private TV news channels.
- **Alt News, BOOM Live** – Independent fact-checking platforms that act as watchdogs against fake news.

Importance:

- Helps to maintain **press freedom with responsibility**.
 - Protects the **public from misleading information**.
 - Builds **trust** between media and the people.
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2. Press Ombudsman:

Definition:

A **Press Ombudsman** is a **neutral person or office** inside a news organization or appointed by a press council who looks into **complaints from the public** against unfair or unethical news reporting.

Role of a Press Ombudsman:

- Acts like a **bridge between the public and the media**.
- Listens to complaints about **wrong or harmful news**.
- Investigates whether the journalist followed **ethics and fairness**.
- Suggests **corrections, clarifications, or apologies**.
- Promotes **transparency and accountability** in journalism.

Press Ombudsman Around the World:

- **South Africa** has a well-known Press Ombudsman system.

- In India, most media houses **do not yet have their own ombudsman**, but the **Press Council of India** performs some similar functions.

Difference between Media Watchdog and Press Ombudsman:

Point	Media Watchdog	Press Ombudsman
Type	Mostly external organization	Internal or neutral person
Role	Monitors all media activities	Handles individual complaints
Action	Can issue warnings or reports	Can ask for correction or apology
Example	Press Council of India	Ombudsman of <i>The Hindu</i> newspaper (appointed in the past)

Conclusion:

Both **media watchdogs** and **press ombudsmen** play an important role in ensuring that the media does not misuse its freedom. They help maintain **ethics, honesty, and trust** in journalism. In today's time of fake news and sensationalism, such bodies are **more important than ever** to protect both **press freedom and public interest**.

C. Pressures on Media: Political, Corporate, social, religious, advertisers and lobbies, etc:

Introduction:

Media is known as the fourth pillar of democracy. It has the power to inform, educate, and influence the public. But in modern times, media faces many pressures from different groups like political parties, big companies, religious groups, social groups, advertisers, and lobbies. These pressures often affect the freedom and honesty of journalism.

1. Political Pressure:

Political parties and governments often try to control the media to promote their own image or hide their mistakes.

- Sometimes, journalists are threatened or attacked for reporting against the government.
- Government-owned media may only show positive news about ruling parties.
- Political pressure can lead to censorship or biased reporting.

Example: During the Emergency in India (1975-77), the government imposed strict censorship on media.

2. Corporate Pressure:

Big business houses and industrialists use media to protect their business interests.

- They try to stop negative news about their company.
- Sometimes they own media channels, which then promote only their side of the story.
- Media may avoid reporting about worker exploitation or environmental damage by big companies.

Example: Many large corporate houses in India now own TV channels and newspapers.

3. Advertisers' Pressure:

Media depends on advertisements for income. Advertisers can use this to control content.

- Media may avoid publishing negative news about companies that give them advertisements.
- They may publish fake positive reviews to please sponsors.
- Media sometimes promotes harmful products like tobacco or fairness creams for money.

Example: If a newspaper writes against a big brand, that brand may stop giving ads to that paper.

4. Religious Pressure:

Religious groups often demand that media show only content that matches their beliefs.

- Media may avoid sensitive topics to prevent religious anger.
- Reporting on religious violence or superstitions can bring threats to journalists.
- Sometimes media is forced to show certain religious events or propaganda.

Example: Cartoon publications or films have often faced protests from religious groups in India.

5. Social Pressure:

Some social groups want the media to follow their traditions or values.

- Reporting about caste, gender, or sexuality may cause backlash.
- Media sometimes self-censors to avoid hurting public sentiments.

Example: Media often avoids reporting LGBTQ+ issues due to fear of social reaction.

6. Pressure from Lobbies:

Lobbies are organized groups that try to influence public opinion and government policy through the media.

- These may include pharma lobbies, arms lobbies, or foreign groups.
- They use paid news, PR agencies, and fake campaigns to push their agenda.

Example: Climate change denial lobbies have tried to influence media reporting globally.

Conclusion:

The media should work independently without any external pressure. But in reality, many powerful groups try to control what the media shows. These pressures affect the truthfulness and fairness of journalism. That is why strong media ethics, public awareness, and legal protections are necessary to protect the freedom of the press and ensure the media remains the voice of the people.

D. Crime against women and children. Laws dealing with obscenity, domestic violence, and rape:

1. Crime Against Women

Women in India face a wide range of crimes, including rape, sexual harassment, dowry-related violence, and domestic violence. These crimes can occur both in the public and private spheres. Women have been

subject to discrimination and violence for centuries, but in recent years, there has been greater attention to these issues, and laws have been enacted to offer protection.

Examples of Crimes Against Women

- **Rape and Sexual Assault:** These crimes are among the most common forms of violence against women. The 2012 Nirbhaya case in Delhi is a tragic example of sexual assault that sparked national protests and led to tougher laws on sexual violence.
- **Domestic Violence:** Often underreported, domestic violence includes physical, emotional, and psychological abuse by intimate partners or family members.

Relevant Laws for Crime Against Women

- **The Protection of Women from Domestic Violence Act (2005):** This law provides relief to women who are victims of domestic violence. It includes provisions for protection orders, residence orders, and maintenance for victims.
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2. Crime Against Children

Children in India are vulnerable to a range of crimes, such as child labor, sexual abuse, trafficking, and exploitation. Many laws aim to protect children from these harmful activities, but enforcement and awareness remain a challenge.

Examples of Crimes Against Children

- **Child Sexual Abuse:** Children, especially in rural areas, are often victims of sexual abuse. The 2012 case of a child abuse scandal in the Delhi orphanage led to a national outcry.
- **Child Labor:** Despite laws prohibiting child labor, many children are still forced into work, particularly in agriculture, factories, and domestic labor.

Relevant Laws for Crime Against Children

- **The Protection of Children from Sexual Offences (POCSO) Act (2012):** This law provides legal protection to children from sexual assault, harassment, and pornography. Special courts are established to fast-track cases involving child sexual abuse.
 - **The Child Labour (Prohibition and Regulation) Act:** This act prohibits the employment of children under the age of 14 in any factory, mine, or hazardous work environment.
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3. Laws Dealing with Obscenity

Obscenity laws in India aim to protect individuals from exploitation through pornography or offensive media. These laws are particularly important in safeguarding children and women from sexual exploitation.

Relevant Laws for Obscenity

- **Indian Penal Code (IPC) Section 292 and 293:** These sections deal with the sale, distribution, or exhibition of obscene materials. It is illegal to circulate obscene publications or perform obscene acts in public.

- **The Information Technology (Amendment) Act, 2008:** Section 67 of the IT Act criminalizes the publication or transmission of obscene material in electronic form, such as pornography on the internet.

Example of Obscenity

In 2014, a popular mobile app was banned in India due to its obscene content that targeted women. The app allowed users to upload and share explicit content, leading to a nationwide debate on digital obscenity.

4. Laws Dealing with Domestic Violence

Domestic violence is one of the most pervasive crimes affecting women in India. Women in abusive relationships often face physical, emotional, and economic abuse, yet many do not report these incidents due to societal pressures or lack of resources.

Relevant Laws for Domestic Violence

- **The Protection of Women from Domestic Violence Act, 2005:** This law specifically addresses domestic violence in the form of physical, emotional, sexual, and economic abuse. It provides a broad range of remedies, including shelter, protection orders, and financial support.

Example of Domestic Violence

In the case of Roshni's case, a woman sought protection under the Domestic Violence Act after facing severe physical and emotional abuse from her husband. The court granted her a protection order, and her abuser was made to vacate their shared residence.

5. Laws Dealing with Rape

Rape is a horrific crime that often leads to lifelong trauma for the victim. India has seen many high-profile cases, particularly after the 2012 Nirbhaya case, which sparked widespread protests and led to stricter laws for sexual violence.

Relevant Laws for Rape

- **Indian Penal Code (IPC) Section 375 and 376:** These sections define rape and lay out the punishment for the crime. In cases of rape, the law provides for life imprisonment or the death penalty in extreme cases, depending on the severity of the crime.
- **Criminal Law (Amendment) Act, 2013:** After the Nirbhaya case, this law was introduced to make punishments for rape harsher. It expanded the definition of rape and included new offenses like stalking and voyeurism.

Case Study: Nirbhaya Case (2012)

The 2012 Nirbhaya case is one of the most infamous incidents of rape in India. A 23-year-old woman was brutally gang-raped and murdered in Delhi, leading to nationwide protests. The case resulted in the passing of the 2013 Criminal Law (Amendment) Act, which made the punishment for rape more severe and fast-tracked the trial process.

Conclusion

Laws in India provide a legal framework to combat crimes against women and children, including rape, domestic violence, and obscenity. However, challenges remain in implementation, and the social stigma around reporting such crimes often prevents victims from coming forward. More awareness, stricter law enforcement, and support for victims are essential to reduce these crimes and provide justice for the affected individuals.

E. Codes of conduct ASCI, Association of Media Professionals and Broadcast laws:

1. Advertising Standards Council of India (ASCI)

The **Advertising Standards Council of India (ASCI)** is a self-regulatory body that was established in 1985 with the primary aim of ensuring that advertisements in India adhere to ethical standards and are truthful, fair, and not misleading. ASCI ensures that advertisers, whether in print, television, or digital media, comply with certain guidelines and regulations.

Objectives of ASCI:

- **Promote Ethical Advertising:** ASCI seeks to promote and maintain ethical advertising in India. It is committed to protecting the interests of consumers by ensuring that advertisements do not mislead or deceive.
- **Protect Consumers' Rights:** ASCI works to ensure that advertisements do not harm consumer interests, particularly vulnerable groups such as children.
- **Self-Regulation:** ASCI operates under a self-regulatory framework where it receives complaints from consumers and industry members regarding advertisements. It then evaluates these ads against the ASCI code and suggests corrective action.

ASCI Code:

The ASCI Code provides guidelines on various aspects of advertising, including:

- **Truthfulness:** Advertisements must not mislead consumers or make exaggerated claims.
- **Decency and Fairness:** Ads should not offend public decency or be discriminatory based on gender, caste, or religion.
- **Misleading Claims:** Ads should not misrepresent products or services, especially when it comes to claims about health or safety.

Example:

In 2019, ASCI took action against several advertisements for misleading claims about skincare products. One such ad, which promised instant fairness, was found to be deceptive. ASCI ordered the ad to be withdrawn and advised the advertiser to revise the content to be in line with ethical standards.

2. Association of Media Professionals (AMP)

The **Association of Media Professionals (AMP)** is a professional organization dedicated to upholding the rights, interests, and responsibilities of media professionals across various sectors of the industry. AMP aims to enhance the quality of media production and ensure that media professionals adhere to ethical guidelines while maintaining public trust.

Objectives of AMP:

- **Promote Professionalism:** AMP strives to raise the standard of media professionals by promoting best practices and offering training and educational resources.
- **Advocacy:** AMP works as an advocate for the media industry's interests, pushing for policies that benefit media professionals.
- **Ethics and Integrity:** The association emphasizes ethical conduct in journalism, broadcasting, advertising, and media production.

Code of Ethics by AMP:

AMP members are encouraged to adhere to ethical practices such as:

- **Accuracy and Fairness:** Ensuring the information disseminated through media is accurate, well-researched, and fair.
- **Independence:** Media professionals are expected to be impartial and avoid conflicts of interest.
- **Respect for Privacy:** Media practitioners should respect the privacy of individuals and avoid publishing defamatory content.

Example:

AMP has been involved in several campaigns advocating for the protection of media workers' rights, such as the right to fair compensation and better working conditions. It also promotes discussions on combating misinformation and sensationalism in the media.

3. Broadcast Laws in India

Broadcast laws in India govern the broadcasting industry, ensuring that the content aired on television, radio, and digital platforms follows certain ethical guidelines. These laws are critical to maintaining a balance between freedom of expression and responsible media practices.

Key Broadcast Laws:

1. Cable Television Networks (Regulation) Act, 1995:

- This law regulates cable television networks in India. It requires cable operators to register and ensures that the content being broadcasted adheres to prescribed guidelines, such as avoiding obscenity, promoting national integration, and preventing harmful content.

- **Program Code:** The Act mandates that television channels must follow a program code, ensuring that content is suitable for all audiences, particularly children.
- 2. **The Broadcasting Content Complaints Council (BCCC):**
 - The BCCC was formed to handle complaints related to broadcast content on private television channels. This body addresses concerns related to obscenity, violence, and content that violates public decency. It works to ensure that broadcasters are held accountable for the content they air.
 - **Example:** The BCCC had issued directives to several channels regarding inappropriate content, including explicit scenes or language during prime-time shows.
- 3. **Prasar Bharati Act, 1990:**
 - This Act established **Prasar Bharati**, the public service broadcaster in India, which oversees the All India Radio (AIR) and Doordarshan (DD). The Act ensures that the content broadcast by AIR and Doordarshan is in line with national interests and values.
 - **Content Guidelines:** Prasar Bharati has specific content guidelines to ensure that the broadcasts do not promote violence, obscenity, or hate speech. These guidelines also ensure that content is educational and informative.
- 4. **The Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021:**
 - These rules, introduced by the Ministry of Information and Broadcasting, regulate the content on digital platforms, such as OTT services, social media, and other digital broadcasters. The rules mandate the creation of a grievance redressal mechanism and the establishment of a self-regulatory body to monitor content.
 - **Example:** The rules aim to address issues related to fake news, inappropriate content, and manipulation on digital platforms, ensuring greater accountability in the online broadcasting sector.

Conclusion

The regulatory bodies and codes of conduct established by organizations such as **ASCI**, **AMP**, and the **broadcast laws** in India play a crucial role in maintaining ethical standards in the media industry. These frameworks ensure that media content, whether it is in advertising, news, or entertainment, is fair, accurate, and does not harm public welfare. Adhering to these laws and codes helps build trust between media outlets and their audience, ensuring responsible media practices across various platforms.